

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1418, As Amended

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO KRATOM; AMENDING TITLE 37, IDAHO CODE, BY THE ADDITION OF A NEW CHAPTER 31, TITLE 37, IDAHO CODE, TO ESTABLISH THE KRATOM CONSUMER PROTECTION AND SAFETY ACT; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Title 37, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW CHAPTER, to be known and designated as Chapter 31, Title 37, Idaho Code, and to read as follows:

CHAPTER 31

KRATOM CONSUMER PROTECTION AND SAFETY

37-3101. SHORT TITLE. This chapter shall be known and may be cited as the "Idaho Kratom Consumer Protection and Safety Act."

37-3102. LEGISLATIVE FINDINGS AND INTENT. (1) The legislature finds that:

(a) Kratom is legally sold in Idaho and used by adults for a variety of personal purposes;

(b) Public health risks arise primarily from adulterated or chemically enhanced kratom products, particularly those containing artificially elevated levels of 7-hydroxymitragynine (7-OH); and

(c) Kratom's natural alkaloid profile contains only trace amounts of 7-OH, while potentially dangerous products often include synthetic or spiked levels of 7-OH.

(2) It is the intent of the legislature:

(a) To preserve adult access to natural kratom while preventing the sale of unsafe, adulterated, or synthetic products;

(b) That regulation of natural kratom products be limited, minimal, and fiscally neutral, and not include the imposition of licensing fees nor registration requirements; and

(c) To occupy the whole field of regulation regarding natural kratom products such that no political subdivision of the state shall adopt or enact any standard or other requirement that is inconsistent with, varies from, exceeds, or imposes additional burdens than the provisions of this chapter. Any such standard or requirement that now exists, or that may hereinafter exist, is hereby declared to be unenforceable.

37-3103. DEFINITIONS. As used in this chapter:

(1) "Adulterated kratom product" means a kratom product that:

(a) Contains any synthesized material, semisynthetic alkaloid, or synthetic kratom-like compound;

(b) Contains added or artificially increased 7-hydroxymitragynine (7-OH);

(c) Contains 7-OH that exceeds two percent (2%) of its total alkaloid content;

(d) Contains more than one (1) milligram per serving of 7-OH;

(e) Contains heavy metals exceeding applicable federal limits;

(f) Contains microbial contamination, mold, salmonella, E. coli, or other harmful adulterants; or

(g) Contains any controlled substance listed under chapter 27, title 37, Idaho Code.

(2) "Alkaloid" means a compound found in the mitragyna speciosa leaf, including but not limited to mitragynine, paynantheine, speciociliatine, or speciogynine.

(3) "Department" means the Idaho department of agriculture.

(4) "Kratom" means the mitragyna speciosa plant or any part of that plant.

(5) "Kratom distributor" means a person that sells, transports, stores, or wholesales a finished kratom product that the person did not manufacture, process, extract, alter, repackage, or relabel.

(6) "Kratom extract" means a substance or compound obtained by extraction from the mitragyna speciosa leaf that contains kratom alkaloids and that does not contain any controlled substances or levels of residual solvents higher than is allowed in the U.S. pharmacopoeia (USP) 467.

(7) "Kratom product" means a finished product containing kratom or kratom extract that is intended for human consumption that contains any part of the mitragyna speciosa plant in any form.

(8) "Kratom processor" means a person that:

(a) Manufactures, distributes, or warehouses a kratom product; or

(b) Advertises, represents, or holds itself out as manufacturing, distributing, or warehousing a kratom product.

(9) "Kratom retailer" means a person that sells or advertises itself as selling kratom products directly to consumers for human consumption.

(10) "Person" means any individual, partnership, corporation, association, governmental subdivision or agency, or public or private organization or entity of any character.

37-3104. PROHIBITED CONDUCT. (1) A kratom processor or retailer shall not:

(a) Sell, prepare, or distribute an adulterated kratom product;

(b) Add, introduce, or apply any substance intended to increase the concentration or potency of 7-OH in a kratom product;

(c) Sell a synthetic product falsely represented as a kratom product; and

(d) Mislabel or intentionally misrepresent the alkaloid content of a kratom product.

(2) A kratom retailer or distributor does not violate this chapter if it is shown by a preponderance of the evidence that the retailer or distributor, in good faith, relied on the representation of a kratom processor that the product was a kratom product and not an adulterated kratom product.

1 (3) This chapter shall not be construed to prohibit the production or
2 sale of kratom products that include other substances, such as vitamins,
3 minerals, botanicals, concentrates, metabolites, extracts, or combinations
4 thereof, that are not otherwise prohibited by law.

5 37-3105. AGE RESTRICTION. (1) No person shall sell, deliver, or give
6 away kratom or cause or permit kratom to be sold, delivered, or given away to
7 any person under twenty-one (21) years of age.

8 (2) Proof of age shall be a validly issued state, district, territo-
9 rial, possession, provincial, national, or other equivalent government
10 driver's license, identification card, or military identification card
11 bearing a photograph and date of birth, or a valid passport.

12 (3) Any person who knowingly misrepresents age for the purpose of ob-
13 taining kratom shall be guilty of a misdemeanor.

14 (4) (a) It shall be an affirmative defense for a kratom retailer that re-
15 quested, examined, and reasonably relied on identification establish-
16 ing age pursuant to this section provided to the retailer by a person in-
17 tending to purchase a kratom product.

18 (b) A kratom retailer's failure to request and examine identification
19 from a person intending to purchase a kratom product prior to the sale
20 of such product to such person shall be construed against the retailer
21 and shall form a conclusive basis for the retailer's violation of this
22 section.

23 37-3106. TESTING REQUIREMENTS. (1) A kratom processor shall keep, and
24 make available upon request by the department, a certification that the pro-
25 cessor's operations are consistent with applicable federal regulations and
26 guidelines, including:

27 (a) 21 CFR 111 and 117;

28 (b) Requirements related to the processor establishing limits and con-
29 trols for contaminants reasonably likely to occur; and

30 (c) Other such requirements that apply to kratom products made avail-
31 able pursuant to the provisions of this chapter for facilities that man-
32 ufacture, process, pack, or store a kratom product that is being offered
33 for sale in the state of Idaho.

34 (2) A kratom retailer or distributor may rely, in good faith, on the
35 kratom processor's certification and shall not be subject to penalty for
36 violations resulting solely from inaccurate or fraudulent information pro-
37 vided by a kratom processor.

38 37-3107. LABELING REQUIREMENTS. A kratom product offered for sale in
39 Idaho shall include on its package:

40 (1) The name and business address of the processor or retailer;

41 (2) A batch number;

42 (3) The full list of ingredients in the kratom product;

43 (4) Directions for use that include, at a minimum, the recommended
44 amount of the kratom product per serving; and

45 (5) A statement that the product:

46 (a) Contains kratom;

- (b) Has not been evaluated by the U.S. food and drug administration, and is not intended to diagnose, treat, cure, or prevent any disease;
- (c) Should be used only after consulting with a health care provider;
- (d) Should be used only after consulting with a health care provider if that consumer is or may be pregnant or breast-feeding;
- (e) Should be kept out of reach from children;
- (f) Is not for sale to persons under twenty-one (21) years of age;
- (g) May be habit forming; and
- (h) May interact with certain medications, drugs, and controlled substances.

37-3108. ENFORCEMENT AND PENALTIES. (1) A person that knowingly violates this chapter is subject to a civil penalty not to exceed:

- (a) One thousand dollars (\$1,000) for a first violation; and
- (b) Two thousand five hundred dollars (\$2,500) for each subsequent violation.

(2) Each batch or individually packaged product sold in violation of this chapter constitutes a separate offense.

(3) The department and the Idaho state police shall jointly enforce and administer the provisions of this chapter to ensure compliance therewith. The department and state police shall have the authority to enter property where kratom is processed, produced, sold, stored, or handled for the purpose of inspections, sample collection, testing, or investigation to ensure compliance with the provisions of this chapter and rules that may be promulgated pursuant thereto. Such inspections may be random and unannounced but shall be conducted during the establishment's standard business hours.

(4) The attorney general or a county prosecuting attorney in which the alleged violation occurred shall bring a civil action to enforce this chapter.

- (a) A political subdivision of the state may request the office of the attorney general and the county prosecuting attorney to bring a civil action to enforce this chapter.

- (b) A private cause of action is prohibited, unless such action is brought pursuant to chapter 6, title 48, Idaho Code, or laws related to consumer protection or product liability. Nothing in this chapter shall be construed to limit civil remedies that may be available pursuant to law.

(5) Any adulterated kratom product may be seized and destroyed pursuant to court order.

(6) Any retailer violating this chapter for a third or subsequent time within a two (2) year period may be subject to an injunction. The department or the prosecuting attorney may petition the district court for an injunction to prohibit the sale of kratom products in the establishment where the violation occurred.

- (a) If a court finds that the retailer in the action has violated the provisions of this chapter for a third or subsequent time within a two (2) year period and may continue to violate this chapter, it may grant an injunction prohibiting the retailer from selling kratom products in the establishment where the violation occurred for a period of not more than one hundred eighty (180) days.

1 (b) For the purposes of this subsection, multiple violations occurring
2 before the petition for the injunction is filed shall be deemed part of
3 the violation for which the injunction is sought.

4 (c) If the person against whom the injunction is sought operates multi-
5 ple geographically separate establishments, the injunction shall apply
6 only to the establishment where the violation occurred.

7 (d) The injunction shall prohibit all sales of kratom products in the
8 establishment where the violation occurred, regardless of any change in
9 ownership or management of the establishment that is not a bona fide,
10 arms-length transaction while the injunction is in effect.

11 (7) Notwithstanding the provisions of this chapter, no fine for a vi-
12 olation of this chapter shall be imposed for a first offense in any twenty-
13 four (24) month period if the retailer can show it has:

14 (a) Adopted and enforced a written policy against selling kratom prod-
15 ucts to persons under twenty-one (21) years of age;

16 (b) Informed its employees of the applicable laws regarding the sale of
17 kratom products to persons under twenty-one (21) years of age;

18 (c) Required employees to verify the age of kratom product customers by
19 way of photographic identification or by means of electronic transac-
20 tion scan device; and

21 (d) Established and imposed disciplinary sanctions for noncompliance.

22 (8) All civil penalties collected pursuant to this chapter shall be
23 distributed equally between the department and the Idaho state police.

24 (a) The civil penalties collected pursuant to this chapter shall be re-
25 mitted to the state treasurer for deposit into the agriculture depart-
26 ment inspection fund established in section 22-104, Idaho Code, and the
27 Idaho law enforcement fund established in section 67-2914, Idaho Code.

28 (b) Moneys collected and deposited pursuant to this section shall be
29 used by the department and Idaho state police for employee compensa-
30 tion, enforcement, training, investigation, and laboratory testing
31 related to the provisions of this chapter.

32 (c) Moneys deposited into the funds pursuant to this chapter shall re-
33 main in such funds until such time as they may be appropriated by the
34 legislature to be expended by the department and Idaho state police for
35 the purposes provided by this chapter.

36 37-3109. RULEMAKING AUTHORITY. The department may adopt only mini-
37 mal rules, subject to legislative approval, necessary to define acceptable
38 contaminant limits and testing standards. No rule may impose any licensing
39 requirement, registration requirement, fee, or regulatory burden not ex-
40 pressly authorized in this chapter.

41 SECTION 2. An emergency existing therefor, which emergency is hereby
42 declared to exist, this act shall be in full force and effect on and after
43 January 1, 2027.